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Attorneys for Defendants, SAFEWAY, INC., a Delaware corporation; and GARDAWORLD

ELECTRONICALLY
FILED
Superior Court of California, County of San Francisco
02/24/2026
Clerk of the Court
BY: AUSTIN LAM
Deputy Clerk

SUPERIOR COURT OF THE STATE OF CALIFORNIA

COUNTY OF SAN FRANCISCO, CIVIC CENTER COURTHOUSE

CHARLA WILLIAMS, an individual, Plaintiff, v. SAFEWAY INC., a Delaware corporation; ALBERTSONS COMPANIES, INC., a Delaware corporation; GARDAWORLD, an unknown entity; JOHN DOE, an individual; and DOES 1 TO 100, inclusive, Defendants.	Case No. CGC-24-614480 **STIPULATED AND UNOPPOSED EX PARTE APPLICATION OF ALL PARTIES TO CONTINUE TRIAL AND ALL RELATED DATES; MEMORANDUM OF POINTS AND AUTHORITIES; JOINT STIPULATION; DECLARATION OF S. CHRISTIAN ANDERSON; [PROPOSED] ORDER** Date: February 25, 2026 Time: 11:00 a.m. Dept.: 206 Judge: Rochelle East Dept.: 206 Action Filed: May 8, 2024 Trial Date: April 6, 2026

TO THE HONORABLE COURT, ALL PARTIES, AND THEIR COUNSEL OF RECORD:

PLEASE TAKE NOTICE THAT on February 25, 2026, at 11:00 a.m., or as soon thereafter as counsel may be heard, in Department 206 of the above-captioned Court, located at 400 McAllister Street, San Francisco, California 94102, Defendants, SAFEWAY, INC., a Delaware corporation; and GARDAWORLD and Plaintiff CHARLA WILLIAMS hereby apply for an order to move this Court *ex parte* to issue an order continuing the current trial date of April 6, 2026, for a date on or

after October 19, 2026, and to continue all trial and pre-trial deadlines and all statutory cut-off dates consistent with the new trial date, including without limitation discovery, law and motion, and expert designation and discovery. **All parties have stipulated to the trial continuance requested** as set forth in the executed parties' Joint Stipulation executed by counsel for parties herein**.** (Anderson Decl., ¶ 6, Exh. A.)

NOTICE OF EX PARTE APPLICATION

As set forth in the attached declaration of S. Christian, Anderson, Defendant gave notice of this *ex parte* application pursuant to California *Rules of Court*, Rule 3.1204, by e-mail to all counsel at 3:42 p.m. on February 20, 2026. (Anderson Decl., ¶ 7, Exh. B.)

This is the parties' First request for a trial continuance.

This *ex parte* application is made pursuant to the California Code of Civil Procedure, section 166, which vests this Court with authority to grant orders upon *ex parte* application; California Rules of Court, Rule 3.1200 et seq., which governs *ex parte* applications; and California Rules of Court, Rule 3.1332, which sets forth the grounds for trial continuances.

This application is further made pursuant to this Notice; the accompanying memorandum of points and authorities; Declaration of S. Christian Anderson, Joint Stipulation, and all documents attached thereto; the pleadings and records on file herein; and upon such further documents, evidence, and argument as may be before the Court at the time of the hearing on this application.

DATED: February 24, 2026

MANNING & KASS
ELLROD, RAMIREZ, TRESTER LLP

By: _____
S. Christian Anderson
Attorneys for Defendants, SAFEWAY, INC., a Delaware corporation; and GARDAWORLD

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MEMORANDUM OF POINTS AND AUTHORITIES

I. INTRODUCTION

The Complaint pleads that Plaintiff was a patron of Defendant, SAFEWAY, INC., located at 1335 Webster Street, San Francisco, California 94115, and while Plaintiff was entering the subject premises she alleges that Defendant, JOHN DOE physically attacked and assaulted PLAINTIFF.

The parties have stipulated to this *ex parte* application to continue the trial, and respectfully request this Court to continue the Trial, currently scheduled for April 6, 2026, to October 19, 2026 (or to any date thereafter the Court deems appropriate), and to continue all related pre-trial deadlines (including expert discovery cut-offs), consistent with the new trial date.

II. THIS COURT HAS THE AUTHORITY TO GRANT THE REQUESTED EX PARTE RELIEF

California Rules of Court, rule 3.1200 et seq. permits *ex parte* applications for an order as long as the opposing party has been given notice of the application within a reasonable time, and the applicant makes an affirmative factual showing in a declaration demonstrating the statutory basis for granting relief on an *ex parte* basis.

III. THERE IS GOOD CAUSE TO CONTINUE THE CURRENT TRIAL DATE AND ASSOCIATED DEADLINES

California Rules of Court, rule 3.1332 (c) provides in relevant part:

> "The court may grant a continuance only upon an affirmative showing of good cause requiring the continuance. Circumstances that may indicate good cause include:
>
> (3) The unavailability of trial counsel because of death, illness, or other excusable circumstances;
>
> (4) The substitution of trial counsel, but only where there is an affirmative showing that the substitution is required in the interests of justice;
>
> (6) A party's excused inability to obtain essential testimony, documents, or other material evidence despite diligent efforts; and
>
> (7) A significant, unanticipated change in the status of the case as a result of which the case is not ready for trial.

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Furthermore, California Rules of Court Rule 3.1332(d), provides:

> In ruling on a motion or application for continuance, the court must consider all the facts and circumstances that are relevant to the determination. These may include: (1) The proximity of the trial date; (2) *Whether there was any previous continuance, extension of time, or delay of trial due to any party*; (3) The length of the continuance requested; (4) The availability of alternative means to address the problem that gave rise to the motion or application for a continuance; (5) The prejudice that parties or witnesses will suffer as the result of a continuance; (6) If the case is entitled to a preferential trial setting, the reasons for that status and whether the need for a continuance outweighs the need to avoid delay; (7) The court's calendar and the impact of granting a continuance on other pending trials; (9) *Whether all parties have stipulated to a continuance*; (10) *Whether the interests of justice are best served by a continuance*, by trial of the matter, or by imposing conditions on the continuance; and (11) Any other fact or circumstance relevant to the fair determination of the motion or application.
>
> (Emphasis added.)

As set forth in Rule 3.1332, good cause exists to continue the trial in this matter.

Plaintiff has claimed they are still treating and alleges a series of complex injuries and procedures, surgeries and injections on multiple parts of her body as a result of the alleged incident. Accordingly Defendants have been compelled to postpone conducting plaintiff's IME until March 9, 2026 in order to ensure that a meaningful IME of plaintiff could occur;

The parties agree resources would be more productively allocated and focused on mediation settlement, that would require a continuance of the trial;

The parties have all the information needed to successfully mediate the case, but do not have time to prepare for and attend a mediation and concurrently prepare for and complete all pre trial and expert discovery and depositions needed for the current trial date April 6, 2026. Defense counsel is scheduled for additional Jury Trials on March 30, 2026 and April 20, 2026 and will not have time to prepare for and attend a mediation and concurrently prepare for and complete all pretrial and expert discovery needed if this case is to be tried on April 6, 2026;

The parties agreed and signed an agreement to mediate this case on June 24, 2026, with Mediator, Mediator, Scott J. Dickinson, Esq.

The parties have met and conferred and stipulate to this request that the Court continue the trial to October 19, 2026, or to the next date thereafter the court is available to allow for the parties

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to complete pending medical discovery, prepare for, report on and participate in a meaningful mediation with Mediator, Scott J. Dickinson, Esq., on June 24, 2026 and allow for continued negotiations if needed to resolve the case.

No party will suffer any prejudice by the requested trial continuance and the trial continuance is not being requested for any improper purpose, and

The interests of justice and fairness would be best served by a reasonable, first trial continuance, and

Therefore, good cause exists to grant this request to continue the trial date in this case to October 19, 2026 or the first date thereafter the court is available along with all discovery, expert cutoff and all other pre trial deadlines which will also be continued and reset in connection with the new trial date. This joint request is made based on the foregoing good cause shown pursuant to California Rules of Court, rule 3.1332. and the courts broad discretion under Code of Civil Procedure section 128.

A Continuance Would Benefit All Parties and the Court

No party will suffer any prejudice from this continuance, as they have stipulated to it for the reasons outlined above. Moreover, a continuance will further the interests of justice by ensuring sufficient time and opportunity to meaningfully mediate this case. The parties have all the information needed to successfully mediate the case, but do not have time to prepare for and attend a mediation and concurrently prepare for and complete all pre trial and expert discovery and depositions needed for the current, original trial date April 6, 2026. Defense counsel is scheduled for additional Jury Trials on March 30, 2026 and April 20, 2026 and will not have time to prepare for and attend a mediation and concurrently prepare for and complete all pretrial and expert discovery needed if this case is to be tried on April 6, 2026. The parties agree resources would be more productively allocated and focused on mediation settlement, that would require a continuance of the trial;

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IV. CONCLUSION

For all of these reasons, good cause exists for granting this first application to continue trial to October 19, 2026 or as soon thereafter as the court is available, and reset all discovery and other related deadlines according to the continued trial date.

DATED: February 24, 2026

MANNING & KASS
ELLROD, RAMIREZ, TRESTER LLP

By: _____
S. Christian Anderson
Attorneys for Defendants, SAFEWAY, INC., a Delaware corporation; and GARDAWORLD

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DECLARATION OF S. CHRISTIAN ANDERSON

I, S. Christian Anderson, declare as follows:

1. I am an attorney duly admitted to practice before this Court. I am an attorney with Manning & Kass, Ellrod, Ramirez, Trester LLP, attorneys of record for Defendants SAFEWAY, INC., a Delaware corporation; and GARDAWORLD ("Defendants"). I have personal knowledge of the facts set forth herein, and if called as a witness, I could and would competently testify thereto. I make this declaration in support of Defendant's Ex Parte Application to Continue Trial.

2. Plaintiff has claimed they are still treating and alleges a series of complex injuries and procedures, surgeries and injections on multiple parts of her body as a result of the alleged incident. Accordingly Defendants have been compelled to postpone conducting plaintiff's IME until March 9, 2026 in order to ensure that a meaningful IME of plaintiff could occur.

3. The parties agree resources would be more productively allocated and focused on mediation settlement, that would require a continuance of the trial;

4. The parties have all the information needed to successfully mediate the case, but do not have time to prepare for and attend a mediation and concurrently prepare for and complete all pre trial and expert discovery and depositions needed for the current, original trial date April 6, 2026. Defense counsel is scheduled for additional Jury Trials on March 30, 2026 and April 20, 2026 and will not have time to prepare for and attend a mediation and concurrently prepare for and complete all pretrial and expert discovery needed if this case is to be tried on April 6, 2026;

5. The parties agreed and signed an agreement to mediate this case on June 24, 2026 with Mediator, Scott J. Dickinson, Esq..

6. The parties have met and conferred and stipulate to this request that the Court continue the trial to October 19, 2026, or to the next date thereafter the court is available to allow for the parties to complete pending medical discovery, prepare for, report on and participate in a meaningful mediation with Mediator, Scott J. Dickinson, Esq., on June 24, 2026 and allow for continued negotiations if needed to resolve the case. **All parties have stipulated to the trial continuance requested.** A true and correct copy of the parties' Joint Stipulation executed by counsel for parties herein is attached hereto as **Exhibit A**.

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7. Pursuant to California Rules of Court, rule 3.1203(a), notice of this application was provided to all parties via email at 3:42 p.m. on February 20, 2026. A true and correct copy of the email is attached hereto as **Exhibit B**.

8. Pursuant to California Rules of Court, rule 3.1202(b), this is the first request for a trial continuance.

I declare under penalty of perjury under the laws of the State of California that the foregoing is true and correct.

Executed on February 24, 2026, at San Francisco, California.

S. Christian Anderson

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EXHIBIT A

Michael L. Smith (State Bar No. 160305)
michael.smith@manningkass.com
S. Christian Anderson (State Bar No. 282976)
christian.anderson@manningkass.com
MANNING & KASS
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Attorneys for Defendants, SAFEWAY, INC., a Delaware corporation; and GARDAWORLD

SUPERIOR COURT OF THE STATE OF CALIFORNIA

COUNTY OF SAN FRANCISCO, CIVIC CENTER COURTHOUSE

CHARLA WILLIAMS, an individual, Plaintiff, v. SAFEWAY INC., a Delaware corporation; ALBERTSONS COMPANIES, INC., a Delaware corporation; GARDAWORLD, an unknown entity; JOHN DOE, an individual; and DOES 1 TO 100, inclusive, Defendants.	Case No. CGC-24-614480 **JOINT STIPULATION TO CONTINUE TRIAL AND ALL RELATED PRE-TRIAL DEADLINES** Judge: Rochelle East Dept.: 206 Action Filed: May 8, 2024 Trial Date: April 6, 2026

STIPULATION TO CONTINUE TRIAL AND ALL RELATED DATES

The parties to the above-captioned lawsuit, by and through their counsel of record, hereby stipulate and agree to this first joint request to continue the trial date of April 6, 2026 to October 19, 2026 or the first date thereafter the court is available along with all discovery cutoff dates, and pretrial deadlines, or to the first date thereafter the court is available, based on the following good cause, as set forth below:

1. Plaintiff has claimed they are still treating and alleges a series of complex injuries and procedures, surgeries and injections on multiple parts of her body as a result of the alleged incident. Accordingly Defendants have been compelled to postpone conducting plaintiff's IME until March 9, 2026 in order to ensure that a meaningful IME of plaintiff could occur;

2. The parties agree resources would be more productively allocated and focused on mediation settlement, that would require a continuance of the trial;

3. The parties have all the information needed to successfully mediate the case, but do not have time to prepare for and attend a mediation and concurrently prepare for and complete all pre trial and expert discovery and depositions needed for the current, original trial date April 6, 2026. Furthermore, Defense counsel is scheduled for additional Jury Trials on March 30, 2026 and April 20, 2026 and will not have time to prepare for and attend a mediation and concurrently prepare for and complete all pretrial and expert discovery needed if this case is to be tried on April 6, 2026;

4. The parties contacted multiple mediators and have agreed and set a mediation for this case on the first available date for all parties on June 24, 2026 with Mediator, Scott J. Dickinson, Esq.

5. The parties have met and conferred and stipulate to this request that the Court continue the trial to October 19, 2026, or to the next date thereafter the court is available to allow for the parties to complete pending medical discovery, prepare for, report on and participate in a meaningful mediation with Scott J. Dickinson, Esq, on June 24, 2026 and allow for continued negotiations if needed to resolve the case.

6. No party will suffer any prejudice by the requested trial continuance and the trial continuance is not being requested for any improper purpose, and

7. The interests of justice and fairness would be best served by a reasonable, first trial continuance, and

8. Therefore, good cause exists to grant this request to continue the trial date in this case to October 19, 2026 or the first date thereafter the court is available along with all discovery, expert cutoff and all other pre trial deadlines which will also be continued and reset in connection with the new trial date. This joint stipulation is made based on the foregoing good cause shown pursuant to California Rules of Court, rule 3.1332. and the courts broad discretion under Code of Civil Procedure section 128.

IT IS HEREBY AGREED AND STIPULATED by the parties, by and through their

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respective counsel, that the parties request an Order that:

1. The Jury Trial in this matter be continued to October 19, 2026 at 9:30 a.m. or to the next date the court is available; and

2. The deadline for discovery cut-off and expert designations be continued by Code and re-set based on the new trial date; and

3. All other Pre-Trial deadlines be continued and recalculated based on the new trial date;

IT IS SO STIPULATED.

DOWNTOWN L.A. LAW GROUP

DATED: February 19, 2026

By: Igor Fradkin

Igor Fradkin
Attorneys for Plaintiff, CHARLA WILLIAMS

DATED: February 24, 2026

MANNING & KASS
ELLROD, RAMIREZ, TRESTER LLP

By: _____

Michael L. Smith
S. Christian Anderson
Attorneys for Defendants, SAFEWAY, INC. a Delaware corporation; and GARDAWORLD

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EXHIBIT B

Tisha A. Parry

From: S. Christian Anderson
Sent: Friday, February 20, 2026 3:42 PM
To: Igor Fradkin; Michael Smith
Cc: Tisha A. Parry; TeamIgor; williamscharlaz11212871@dtlalaw.filevineapp.com
Subject: RE: Williams v. Safeway, et al.

Follow Up Flag: Follow up
Flag Status: Flagged

Hi Igor,

Let's go Wednesday.

Here's the notice:

Defendants through counsel hereby give notice they will appear via Courtcall on Wednesday, February 25, 2026 at 11:00 am in department 206 of the San Francisco Superior Court located at San Francisco Superior Courthouse, 400 McAllister St, San Francisco, CA 94102 to apply jointly ex parte to request a continuance of the current trial date.

This ex parte request is being made on the grounds stated in the executed joint stipulation between the parties.

If you have any questions please give me a call on my cell at 415-606-8512.

Thanks

S. Christian Anderson
Attorney
MANNING | KASS
101 Montgomery Street, Suite 2550
San Francisco, CA 94104
Main: (415) 217-6990
Direct: (415) 400-0865
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Dallas | Inland Empire | Los Angeles | New York | Orange County | Phoenix | San Diego | San Francisco

Note: This e-mail is covered by the Electronic Communications Privacy Act, 18 U.S.C. 2510-2521 and is legally privileged. The information transmitted in or with this message is intended only for the person or entity to which it is addressed and may contain confidential and/or privileged material and is protected from disclosure. If the reader of this message is not the intended recipient, or an employee or agent responsible for delivering this message to the intended recipient, you are hereby notified that any retransmission, dissemination, distribution, copying or other use of, or the taking of any action in reliance upon, this communication is strictly prohibited. If you have received this communication in error, please notify us immediately by replying to the message and deleting the material from your computer. Thank you. Manning & Kass, Ellrod, Ramirez, Trester, LLP

From: Igor Fradkin <Igor@downtownlalaw.com>
Sent: Friday, February 20, 2026 2:38 PM
To: S. Christian Anderson <Christian.Anderson@manningkass.com>; Michael Smith <Michael.Smith@manningkass.com>
Cc: Tisha A. Parry <Tisha.Parry@manningkass.com>; TeamIgor <IgorTeam@downtownlalaw.com>;

PROOF OF SERVICE

STATE OF CALIFORNIA, COUNTY OF LOS ANGELES

At the time of service, I was over 18 years of age and not a party to this action. I am employed in the County of Los Angeles, State of California. My business address is 801 S. Figueroa St, 15th Floor, Los Angeles, CA 90017-3012.

On February 24, 2026, I served true copies of the following document(s) described as **STIPULATED AND UNOPPOSED EX PARTE APPLICATION OF ALL PARTIES TO CONTINUE TRIAL AND ALL RELATED DATES; MEMORANDUM OF POINTS AND AUTHORITIES; JOINT STIPULATION; DECLARATION OF S. CHRISTIAN ANDERSON; [PROPOSED] ORDER** on the interested parties in this action as follows:

Igor Fradkin, Esq.
DOWNTOWN L.A. LAW GROUP
540 S. Santa Fe Avenue
Los Angeles, CA 90013
Tel: 213-723-2122
Email: Igor@downtownlalaw.com;
igorteam@downtownlalaw.com

Attorneys for Plaintiff, CHARLA WILLIAMS

BY E-MAIL OR ELECTRONIC TRANSMISSION: I caused a copy of the document(s) to be sent from e-mail address tisha.parry@manningkass.com to the persons at the e-mail addresses listed in the Service List. I did not receive, within a reasonable time after the transmission, any electronic message or other indication that the transmission was unsuccessful.

I declare under penalty of perjury under the laws of the State of California that the foregoing is true and correct.

Executed on February 24, 2026, at Los Angeles, California.

Tisha Parry

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